

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(Civil Appellate Jurisdiction)**

First Appeal No. 70 of 2017

In the matter of:

Government of the People's Republic of
Bangladesh represented by the Deputy
Commissioner, Dhaka Collectorate Building,
Dhaka and others.

... Appellants

-Versus-

Professor Md. Shah Alam

...Respondent

Mr. Arobinda Kumar Roy, D.A.G

...For the appellants

Mr. Md. Ziaul Haque. Advocate

....For the respondent

Heard and Judgment on 03.01.2024.

Present:

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Mohi Uddin Shamim

Md. Mozibur Rahman Miah, J.

At the instance of defendant nos. 1-3 in Title Suit No. 1155 of 2013,
this appeal is directed against the judgment and decree dated 27.10.2014
passed by the learned Joint District Judge, 1st court, Dhaka in the said suit
decreeing the suit ex parte.

The short facts leading to preferring this appeal are:

The present respondent no. 1 as plaintiff filed the aforesaid suit
seeking following reliefs:

(a) To pass a decree declaring that the plaintiff is the sixteen annas owner of the property described in schedule-A to the plaint and has acquired absolute right, title and interest over the suit land;

(b) Declaration that inclusion of the property of the plaintiff in the Dhaka City Jorip (BS) Khatian No. 1 of Kamarpara, J,L No. 6 under Uttara Police Station, Dhaka comprised of B.S Plot No. 1692(0.0968 ajutangsho) and part of 1691 (0.0200 Ajutangsho) published in the name of the defendant No. 1 described in schedule-B to the plaint is illegal, void , erroneous and not binding upon the plaintiff.

(c) Cost of the suit be awarded in favour of the plaintiff and against the defendant;

(d) To grant any other relief or reliefs as the plaintiff is entitled according to law and equity;

The total quantum of the suit land is 10 decimals. In the said suit it has been found from the order being order no. 4 dated 18.03.2014 that, the summons of the suit has duly been served upon the present appellants(defendant nos. 1-3) and since on the subsequent occasions following serving of summons, the defendants did not turn up to contest the suit, the same was decreed ex parte against the defendant nos. 1-3.

Feeling aggrieved by and dissatisfied with the said judgment and decree passed ex parte, the defendant nos. 1-3 as appellants then preferred this appeal.

Mr. Arobinda Kumar Roy, the learned Deputy Attorney General by placing the impugned judgment and decree and referring different document so appeared in the paper book at the very outset submits that, though from the record it reveals that, summons was served upon the present appellants but by suppressing the summons those were shown served upon the present appellants and since the defendants- appellants have got no knowledge about filing of the suit, for which they could not contest the same consequence of which the suit was decreed ex parte.

The learned Deputy Attorney General further submits that, if the present appellants had the knowledge about the filing and continuing of the suit, they would have contested the same and no ex parte decree was passed against the appellants.

The learned Deputy Attorney General by referring to order no. 16 and 17 passed in the suit also submits that, though from those very two orders it shows that a date for argument hearing was fixed by the learned judge of the trial court finding it very much necessary yet the argument hearing has not been ultimately held and judgment was pronounced which also violates the long standing practice followed by the courts below before pronouncing any verdict, so the judgment and decree passed ex parte cannot be sustained in law.

The learned Deputy Attorney General finally contends that, since certain documents have been produced before this Honb'le court and those documents have been taken as additional evidences and the defendants did not get the opportunity to defend their case before the trial court by filing written statement so it would be tactical if the suit is sent

back to the trial court on remand enabling the appellants to file written statement and to contest the same and then to dispose of the suit by the learned judge of the trial court on contest and on merit. With those submission the learned Deputy Attorney General finally prays for allowing the appeal on setting aside the impugned judgment and decree.

On the contrary Mr. Ziaul Haque, the learned counsel appearing for the plaintiff-respondent submits that, since from the order sheet it is clear that the summons have duly been served upon the defendants herein the appellants so there is no reason to set aside the impugned judgment.

The learned counsel further contends that, since the suit was not contesting one so it was not that necessary to frame any issue under the provision of Order 20 Rule 5 of the Code of Civil Procedure and thus the learned judge has rightly decreed the suit. However, the learned counsel frankly submits that, if any time frame is given directing the trial court to conclude the trial providing opportunity to the defendants to defend their case by sending the same on remand for retrial then none of the parties to the suit would have been prejudiced and he has got no objection to that.

We have considered the submission so advanced by the learned Deputy Attorney General for the appellants and that of the respondent. We have also gone through the impugned judgment and decree including the document as well as the order sheet so appeared in the paper book. On going through the order sheet we find that, though the summons was found to have served upon the defendants herein, the appellants but the hearing of the suit had not been concluded in accordance with the settled rule in other words, the argument hearing has not been taken place though

in order no. 16 the trial court felt it necessary to here argument from the plaintiff respondent. Furthermore since there appears controversy about the service of summons upon the defendants though order sheet speaks about the service of summons upon them but shown to have served so considering those two very vital issues we felt it expedient to send the case back on remand to the trial court enabling the defendants- appellants to defend their case by filing a written statement since some documents have already been taken as additional evidence basing on the provision of Order 41 Rule 27 of the Code of Civil Procedure upon agreeing by the plaintiff-respondent.

Given the above facts and circumstances we are thus inclined to set aside the impugned judgment and decree passed ex parte dated 27.10.2014 in Title Suit No. 1155 of 2013.

Resultantly, the appeal is disposed of.

However, the learned judge of the trial court is hereby directed to dispose of the suit within a period of 3(three) months from the date of receipt of the copy of this order. The defendants-appellants are at liberty to file written statement and after filing written statement, if the plaintiff feels it necessary to recall its witnesses that is, PW-1 to PW-4, the learned judge is directed to provide such opportunity to the plaintiff-respondent and then to cross examine the said witnesses by the defendants-appellants.

Apart from that, the document so have been produced before this court which was taken as additional evidences and marked as Annexure-A to D is to be considered at the trial. For such obvious reason, the office is

directed to send back the lower court record along with the copy of said Annexure to the trial court as well.

Let a copy of this order be communicated to the learned Joint District Judge, 1st court, Dhaka forthwith.

Mohi Uddin Shamim, J.

I agree.

Kawsar /A.B.O